

Calendar Line 8

Case Name: *Berkshire Hathaway Homestate Insurance Company v. Andy Le*

Case No.: 25CV471687

PLAINTIFF'S MOTION TO RELATE & CONSOLIDATE

No opposition received. Good cause appearing, Plaintiff's motion is GRANTED.

Discussion

This action arises from a motor vehicle collision that allegedly occurred on September 8, 2023. Plaintiff Berkshire Hathaway Homestate Companies ("BHHC"), the workers' compensation carrier for Plaintiff Camacho's employer, seeks recovery against Defendant Andy Le pursuant to Labor Code section 3852 for workers' compensation benefits paid and to be paid as a result of injuries allegedly caused by the collision.

Separately, Camacho filed a personal injury action against the same defendants arising from the same incident, *Camacho v. Le, et al.*, Santa Clara County Superior Court Case No. 25CV472800. Both actions remain pending, discovery is ongoing, and no trial date has been set in either matter. No opposition to the present motion has been filed.

Labor Code section 3853 governs situations in which both an injured employee and the employer or workers' compensation carrier prosecute separate actions against the same third-party tortfeasor. The statute provides that where separate actions are brought before trial, they "shall" be consolidated. The purpose of the statute is to ensure that the respective rights of the employee and employer or carrier are adjudicated in a single proceeding, thereby avoiding multiple actions arising from the same injury and preventing inconsistent determinations concerning liability and damages.

The statutory prerequisites are satisfied here. BHHC and Camacho have filed separate actions against the same defendants arising from the same September 8, 2023 motor vehicle collision, and both actions remain pending before trial. Accordingly, consolidation is required under Labor Code section 3853.

Consolidation is also appropriate under Code of Civil Procedure section 1048. The two actions present common questions of law and fact, including the circumstances of the accident, Defendants' alleged negligence, comparative fault, causation, the extent to which the accident aggravated Plaintiff Camacho's preexisting injuries, and the damages attributable to the collision. Separate proceedings would require substantially duplicative discovery, witness testimony, and expert evidence, and would create an unnecessary risk of inconsistent findings on issues common to both cases. Consolidation will promote judicial economy and avoid unnecessary costs and delay. The Court finds no apparent prejudice to any party, particularly where discovery remains ongoing, no trial date has been set, and the motion is unopposed.

Accordingly, Plaintiff's motion is GRANTED.

Order

1. This action is consolidated with Camacho v. Le, et al., Santa Clara County Superior Court Case No. 25CV472800, for all purposes pursuant to Labor Code section 3853 and, alternatively, Code of Civil Procedure section 1048.
2. The lower-numbered case, Case No. 25CV471687 shall be the lead
3. All future filings shall bear the lead case number and shall identify the consolidated actions in the caption.

Plaintiff to prepare the final proposed order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.

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Calendar Line 9

Case Name: *Francisco Don Velasquez v. Allied Universal Security, et al.*

Case No.: 25-CV-479556

DEFENDANT’S DEMURRER TO THE COMPLAINT

Factual and Procedural Background

This is an employment action brought by plaintiff Francisco Don Velasquez (“Plaintiff”), a self-represented litigant, against defendants Allied Universal Security (“Allied”) and Stanford Health Care (“SHC”) (collectively, “Defendants”).

On November 12, 2025, Plaintiff filed the operative judicial council form complaint against Defendants alleging causes of action including wrongful termination, retaliation, and failure to accommodate.

On January 26, 2026, defendant SHC filed the motion presently before the court, a demurrer to the complaint. Plaintiff filed written opposition. SHC filed reply papers.

A case management conference is also scheduled for July 24, 2026.

Plaintiff’s motion for leave to file a first amended complaint (“FAC”) is set for hearing on December 4, 2026.

Self-Represented Litigants

Self-represented litigants “are held to the same standards as attorneys.” (*Kobayashi v. Super. Ct.* (2009) 175 Cal.App.4th 536, 543; see also *Burnete v. La Casa Dana Apartments* (2007) 148 Cal.App.4th 1262, 1270 [“self-represented litigants are generally entitled to no special treatment”].) “[M]ere self-representation is not a ground for exceptionally lenient treatment.” (*Rapleyea v. Campbell* (1994) 8 Cal.4th 975, 984.) Otherwise, “exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation.” (*Id.* at p. 985.)

Analysis

Defendant SHC argues the complaint is subject to demurrer for failure to state a valid claim. (Code Civ. Proc., § 430.10, subd. (e).)

“ ‘The absence of any allegation essential to a cause of action renders it vulnerable to a general demurrer. A ruling on a general demurrer is thus a method of deciding the merits of the cause of action on assumed facts without a trial.’ [Citation.] ‘Conversely, a general demurrer will be overruled if the complaint contains allegations of every fact essential to the statement of a cause of action, regardless of mistaken theory or imperfections of form that make it subject to special demurrer.’ [Citation.]” (*Morris v. JPMorgan Chase Bank, N.A.* (2022) 78 Cal.App.5th 279, 291-292 (*Morris*).)

“A complaint, with certain exceptions, need only contain a ‘statement of the facts constituting the cause of action, in ordinary and concise language’ [citation] and will be upheld ‘ “so long as [it] gives notice of the issues sufficient to enable preparation of a defense.”

' [Citation.] '[T]o withstand a demurrer, a complaint must allege ultimate facts, not evidentiary facts or conclusions of law.' [Citation.]" (*Morris, supra*, 78 Cal.App.5th at p. 292.)

In addition, "Judicial Council form complaints are not invulnerable to a demurrer. Conversely, Judicial Council form complaints do not always fail to state a cause of action and, thus, they are not necessarily susceptible to demurrer. The logical implication from these polar opposite principles is that use of a Judicial Council form complaint is not a determinative factor in deciding whether or not to sustain a demurrer. Instead, a reviewing court must examine the particular allegations in the form pleading and determine whether those allegations satisfy the pleading requirements established by California law." (*Esparza v. Kaweah Delta Dist. Hospital* (2016) 3 Cal.App.5th 547, 555.)

Here, the particular allegations in the operative form pleading allege causes of action for wrongful termination, retaliation, and failure to accommodate. The form complaint however does not allege facts to state a cause of action under any of these theories against defendant SHC.

Also, while the allegations of a complaint must be accepted as true for purposes of demurrer, the facts appearing in exhibits attached to the complaint will also be accepted as true, and, if contrary to the allegations in the pleading, will be given precedence. (*Brakke v. Economic Concepts, Inc.* (2013) 213 Cal.App.4th 761, 767.)

The operative complaint attaches various exhibits including Plaintiff's amended complaint of discrimination filed with the Civil Rights Department which provides in relevant part that:

- Defendant Allied was Plaintiff's employer;
- On April 23, 2025, Allied: (1) harassed Plaintiff because of his disability; (2) discriminated against Plaintiff because of other protected characteristics; and (3) retaliated against Plaintiff because he requested or used a religious accommodation.

The aforementioned amended complaint of discrimination, attached as an exhibit, also includes a summary of evidence and chronological timeline of events. There is also a section titled "Summary of Legal Violations" which appears to set forth causes of action including:

- Wrongful Termination in Violation of Public Policy;
- Religious Discrimination and Failure to Accommodate;
- Retaliation for Protected Activity;
- Failure to Provide Statutory Notice of Separation;
- Negligent Administration and Payroll Management;
- Failure to Maintain Personnel Records;
- Constructive Discharge/Hostile Environment.

But, neither the amended complaint of discrimination nor the other exhibits attached to the complaint, allege any facts to state a valid cause of action against defendant SHC under these legal theories. Notably, as pointed out in the moving papers, Plaintiff must plead an employer/employee relationship with SHC to state a valid claim under these employment related causes of action. (See *Vernon v. State of California* (2004) 116 Cal.App.4th 114, 123

[“The fundamental foundation for [FEHA] liability is the ‘existence of an *employment* relationship between the one who discriminates against another and that other who finds himself the victim of that discrimination.’ ”]; *Miklosy v. Regents of University of California* (2008) 44 Cal.4th 876, 900 [“[A] *Tameny* action for wrongful discharge can only be asserted against an *employer*. An individual who is not an employer cannot commit the tort of wrongful discharge in violation of public policy...”]; *Aleksick v. 7-Eleven, Inc.* (2012) 205 Cal.App.4th 1176, 1180 [“the Labor Code wage statutes govern the employee-employer relationship”]; see also *Atalla v. Rite Aid Corp.* (2023) 89 Cal.App.5th 294, 319-320 [employment relationship required for constructive discharge claim].) The operative pleading however *only* alleges an employment relationship between Plaintiff and defendant Allied thus failing to state a valid claim for relief.

In opposition, Plaintiff concedes he was employed by defendant Allied. Nevertheless, Plaintiff contends defendant SHC should be liable for conduct alleged in the complaint because: (1) Plaintiff was assigned to work at SHC’s facilities; (2) SHC exercised authority over Plaintiff’s continued ability to work at its facilities; (3) SHC enforced policies that led to Plaintiff’s removal from his longstanding assignment; and (4) SHC participated in events giving rise to Plaintiff’s claims. But, these contentions are not set forth in the complaint in support of Plaintiff’s claims. Nor does Plaintiff cite any legal authority showing that these contentions would, in the absence of an employer-employee relationship, be able to state a valid claim against SHC. (See *Public Employment Relations Bd. v. Bellflower Unified School Dist.* (2018) 29 Cal.App.5th 927, 939 [“The absence of cogent legal argument or citation to authority allows this court to treat the contention as waived.”]; *United Grand Corp. v. Malibu Hillbillies, LLC* (2019) 36 Cal.App.5th 142, 153 [court may disregard conclusory arguments that are not supported by pertinent legal authority or fail to disclose the reasoning by which the appellant reached the conclusions he or she wants us to adopt]; see also *Quantum Cooking Concepts, Inc. v. LV Assocs., Inc.* (2011) 197 Cal.App.4th 927, 934 [trial court not required to “comb the record and the law for factual and legal support that a party has failed to identify or provide”].) The court therefore finds the demurrer is sustainable on this ground.

As this is the first challenge to the pleadings, the court will provide Plaintiff an opportunity for leave to amend. (See *City of Stockton v. Super. Ct.* (2007) 42 Cal.4th 730, 747 [if the plaintiff has not had an opportunity to amend the pleading in response to a motion challenging the sufficiency of the allegations, leave to amend is liberally allowed as a matter of fairness, unless the pleading shows on its face that it is incapable of amendment].) Should defendant SHC take issue with Plaintiff’s amended complaint, it may file the appropriate pleading motion for demurrer, motion for judgment on the pleadings (after the filing of an answer), or dispositive motion for summary judgment or summary adjudication based on admissible evidence.

Consequently, the demurrer to the complaint is SUSTAINED WITH 15 DAYS’ LEAVE TO AMEND on the ground that the pleading fails to state a cause of action.

Disposition

The demurrer to the complaint is SUSTAINED WITH 15 DAYS LEAVE TO AMEND for failure to state a valid claim.

Plaintiff’s motion for leave to file a FAC, set for hearing on December 4, 2026, is hereby VACATED.

The court will prepare the Order.

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